

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #5	CCRB Case #: 201606279	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/14/2016 9:19 PM	Location of Incident: Prospect Place and Utica Avenue	Precinct: 77	18 Mo. SOL 1/14/2018	EO SOL 1/14/2018	
Date/Time CV Reported Thu, 07/14/2016 10:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/20/2016 2:27 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Omar Birchwood	01886	945512	PSA 2
2. POM Luis Fernandez	22932	953854	PSA 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Stacey Coulter	01483	943110	077 PCT
2. POM Jacob Samuel	20031	959191	077 PCT
3. POM Pedro Flores	20434	958594	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Luis Fernandez	Abuse: Police Officer Luis Fernandez stopped § 87(2)(b)	
B.SGT Omar Birchwood	Abuse: Sergeant Omar Birchwood stopped § 87(2)(b)	

Case Summary

On July 14, 2016, Sgt. Stacey Coulter of the 77th Precinct filed this complaint with IAB via phone on behalf of § 87(2)(b) while he was still present at the stationhouse, generating log number § 87(2)(b). On that same day, § 87(2)(b) also filed this complaint in person with Sgt. Coulter. The complaint was received at the CCRB on July 20, 2016, via log number § 87(2)(b).

On July 14, 2016, at approximately 9:19 PM, § 87(2)(b) left his home at § 87(2)(b), in Brooklyn on his motorcycle, a white, 1999 Yamaha YZF-R6. § 87(2)(b) rode until he reached the traffic light at the intersection of Utica Avenue and Prospect Place and stopped at a red light. A gray car with tinted windows pulled up on § 87(2)(b)'s right side. When the traffic light turned green, the driver's side of window rolled down, and a big, white arm with a light complexion extended out and sprayed a burst of pepper spray into § 87(2)(b)'s face. § 87(2)(b) grabbed his eyes, fell off of his motorcycle. Shortly after, § 87(2)(b) stood up, slightly opened his eyes, and noticed approximately five to six NYPD cars and an unmarked black car. The cars surrounded § 87(2)(b)'s motorcycle and parked diagonally in the street. § 87(2)(b) was still in the middle of the street when he noticed two uniformed NYPD officers, Sgt. Omar Birchwood and PO Luis Fernandez of PSA 2, standing in front of the corner store. § 87(2)(b) said, "Yo, somebody just maced me, somebody just maced me, my eyes is burning." The officers continued to look at § 87(2)(b) until one of them told § 87(2)(b) that he needed § 87(2)(b)'s identification to determine whether § 87(2)(b) had any warrants and whether his motorcycle was stolen (**Allegation A**). § 87(2)(b) told Sgt. Birchwood and PO Fernandez that he could not see, and handed his license, insurance card, and registration to one of them. Sgt. Birchwood or PO Fernandez took § 87(2)(b)'s license and went over to § 87(2)(b)'s motorcycle, which was still in the street near the other officers. Sgt. Birchwood or PO Fernandez pulled out a phone and used it to run § 87(2)(b)'s name. Two more uniformed NYPD officers, PO Jacob Samuel and PO Pedro Flores of the 77th Precinct, approached from the opposite side of the crosswalk. PO Samuel told § 87(2)(b) not to worry about anything; Sgt. Birchwood and PO Fernandez would just run his ID, make sure he had no warrants, and that everything was okay.

Approximately ten to fifteen minutes after § 87(2)(b) was pepper sprayed, § 87(2)(b) believed he noticed the same gray car, which contained the individual who pepper sprayed him, had come back around the block. Sgt. Birchwood or PO Fernandez asked § 87(2)(b) if that was the car and handed § 87(2)(b) back his identification when he confirmed that it was. Sgt. Birchwood, PO Fernandez, and all the NYPD cars then left. There is no video footage of the incident. § 87(2)(b) was neither arrested nor issued summonses.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation over the phone and accepted, § 87(2)(g)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
 - [redacted]
[redacted]
 - [redacted]
[redacted]
- A Notice of Claim request was submitted on November 3, 2016, in regards to the incident. As of November 10, 2016, there were negative results for any notice of claim filed by [§ 87(2)(b)] (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by [§ 87(2)(b)]
- Sgt. Omar Birchwood has been a member of the NYPD for eight years and has had eighteen allegations pleaded against him in five cases. None of Sgt. Birchwood's prior CCRB allegations were substantiated. [§ 87(2)(g)]
[redacted]
- PO Luis Fernandez has been a member of the NYPD for three years and has had two allegations pleaded against him in two cases. Neither of PO Fernandez's prior CCRB allegations were substantiated. [§ 87(2)(g)]
[redacted]

Findings and Recommendations

Allegations not pleaded

- **Force:** [§ 87(2)(b)] provided consistent statements about being pepper sprayed and this is reiterated in the ambulance call report prepared regarding the care he received at the stationhouse on the date of the incident (Board Review 09), and the physician's report prepared regarding an eye examination at [§ 87(2)(g)] (Board Review 10).

However, according to the IAB phone call placed by Sgt. Coulter, when [§ 87(2)(b)] initially filed his complaint in-person, he described the individual who pepper sprayed him as a white male in plainclothes who drove a gray car with two passengers in it, also white males in plainclothes. [§ 87(2)(b)] did not know the make or model of the car, and was unable to provide a license plate number of the car. There were no words exchanged between [§ 87(2)(b)] and the individual who pepper sprayed him, and nothing displayed that would suggest the individuals were officers (Board Review 03).

According to the Unusual Occurrence Report prepared regarding the incident and [§ 87(2)(b)]'s testimony, the picture of a license plate [§ 87(2)(b)] obtained was taken once he went to the 77th Precinct stationhouse, after the incident, to file a complaint (Board Review 05). The license plate, [§ 87(2)(e), § 87(2)(f)], belonged to a parked, gray, Ford Fusion, RMP 1464, in the stationhouse's parking lot (Board Review 06 and Board Review 07). [§ 87(2)(b)] initially stated he did not know the license plate of the vehicle containing the unknown individual who pepper sprayed him, however later identified the Ford Fusion as the vehicle that the unknown individual drove (Board Review 04). During Tour 3 on the date of the incident, RMP 1464 was assigned to Sgt. William Diab and PO

Matthew Rosiello, each of the 77th Precinct, who were in uniform during their tour since an order came down that all officers performing patrol duties must wear their uniform the week of July 10th (Board Review 04). There was not a third individual assigned to the unmarked RMP. In a follow up call placed to IAB, Sgt. Coulter stated that she confirmed with Sgt. John Cerillo of PSA 2 that all officers from that command performing patrol duties were also uniformed (Board Review 08).

When PO Flores was interviewed, he stated he noticed § 87(2)(b) drop his motorcycle and helmet near the middle of the walkway and start screaming that he was pepper sprayed. § 87(2)(b) did not say where the pepper spray occurred or who he believed it was done by, just said that someone did it (Board Review 15). When § 87(2)(b) approached PO Flores and PO Samuel, he appeared fine to PO Flores, but PO Flores noticed his eyes were tearing. According to Sgt. Birchwood, § 87(2)(b) did not mention anything to him about being pepper sprayed. § 87(2)(b) just seemed upset he fell off his motorcycle, although Sgt. Birchwood spent most of his time at the scene with § 87(2)(b)'s motorcycle (Board Review 12). According to PO Fernandez, he did not overhear § 87(2)(b) complain about being pepper sprayed and did not get a good look at § 87(2)(b)'s physical state (Board Review 13). PO Samuel did not see § 87(2)(b) get pepper sprayed. PO Samuel did not notice any police cars in the area. § 87(2)(b) did not say who pepper sprayed him, state that it was an officer who pepper sprayed him, or say where the incident took place, and PO Samuel did not ask (Board Review 14).

§ 87(2)(g)

Allegation A - Abuse of Authority: Sergeant Omar Birchwood stopped § 87(2)(b)

Allegation B - Abuse of Authority: Police Officer Luis Fernandez stopped § 87(2)(b)

It is undisputed that a warrant check was run for § 87(2)(b) FINEST system results obtained by the investigation show that a warrant check was conducted at 9:47 PM on the date of the incident and the request parameters included information such as § 87(2)(b)'s name, and date of birth (Board Review 16). While the results show that the warrant check was performed by PO Sean Wachsberger of PSA 2, according to PSA 2's Third Platoon Roll Call, PO Wachsberger was assigned to Stationhouse Security (Board Review 17). When PO Wachsberger was interviewed at the CCRB, he testified that he was not assigned to an RMP on the date of the incident and did not recall running any names for a warrant check on the date of the incident from the stationhouse. According to PO Wachsberger, usually if an officer in the field needed an officer at the stationhouse to conduct the warrant check, they would probably call the Telephone Switchboard or the front desk (Board Review 18).

§ 87(2)(b) testified that either Sgt. Birchwood or PO Fernandez told him that he needed § 87(2)(b)'s identification to determine whether § 87(2)(b) had any warrants and whether his motorcycle was stolen because it appeared stolen. § 87(2)(b) did not recall anything about the officers' features to distinguish who, among the two, asked for his identification. § 87(2)(b) told Sgt. Birchwood and PO Fernandez that he could not see, and handed his license, insurance card, and registration to one of them. Sgt. Birchwood or PO Fernandez took § 87(2)(b)'s license and went over to § 87(2)(b)'s motorcycle, which was still in the street near the other officers. Sgt. Birchwood or PO Fernandez pulled out a phone and used it

to run § 87(2)(b)'s name. Two more uniformed NYPD officers, PO Samuel and PO Flores, then approached from the opposite side of the crosswalk.

§ 87(2)(g)

§ 87(2)(b) In his CCRB testimony, § 87(2)(b) described the four officers he interacted with after he was pepper sprayed as two white males, one possibly white male, and one Hispanic male (Board Review 05). Sgt. Birchwood is a black male, and PO Fernandez, PO Samuel, and PO Flores are all Hispanic males. Of the four, only PO Fernandez has a somewhat light complexion; the other three have complexions ranging from medium to dark. In his phone statement, § 87(2)(b) only mentioned approaching an officer fitting PO Samuel's description, a possibly Hispanic male with high top fade who he saw later inside of the 77th Precinct stationhouse, and his partner, who he could not describe. § 87(2)(g)

Sgt. Birchwood testified he was in an RMP with his operator, PO Fernandez, on Utica Avenue, going in the direction of Eastern Parkway when PO Fernandez stated he saw a male individual, § 87(2)(b) fall off his motorcycle. PO Fernandez made a U-turn and drove to the incident location. When they arrived at the incident location, § 87(2)(b) was there with two officers, PO Flores and PO Samuel, in front of a corner store. Initially, Sgt. Birchwood and PO Fernandez were in the street trying to stop traffic because the motorcycle was in the middle of it. They then tried to lift it up off the ground although it was pretty heavy. As Sgt. Birchwood lifted the motorcycle, he noticed its V.I.N. was blocked and a Property Invoice sticker on it that was ripped off. This led Sgt. Birchwood to believe the motorcycle may have been stolen. During this time, § 87(2)(b) and the two officers stood on the sidewalk, approximately twenty feet away from where Sgt. Birchwood and PO Fernandez were. When the V.I.N. was ran, Sgt. Birchwood found out it was valid. § 87(2)(b) explained to Sgt. Birchwood that he had had an issue with the 77th Precinct with his motorcycle; something happened, they took it into custody, and that was why the sticker was once on it, and removed. Sgt. Birchwood did not ask § 87(2)(b) for his license, registration, or proof of insurance and was not sure whether PO Fernandez did so. Sgt. Birchwood did not verbalize to § 87(2)(b) that he believed he motorcycle was stolen, and did not think PO Fernandez did so (Board Review 12).

PO Fernandez testified he was driving when he heard a loud bang, looked in the rearview mirror of the RMP, and saw a motorcycle down. PO Fernandez made a U-turn to return to the scene, and check to make sure everything was alright. When PO Fernandez arrived, he observed § 87(2)(b) speaking to two officers from another command, PO Samuel and PO Flores. PO Fernandez and Sgt. Birchwood lifted § 87(2)(b)'s motorcycle up because gasoline was pouring into the street, and stood it up. PO Fernandez noticed the motorcycle was dented, had broken pieces on it, and scratches on the side of the motorcycle that did not hit the street, and had the overall appearance that it had been damaged. According to PO Fernandez, in the area, stolen motorcycles tend to be an issue. PO Fernandez went on to describe that the general area around the nearby housing developments have a lot of roaming bands comprised of motorcycles and dirt bikes that take over streets and the majority of motorcycles in the groups are stolen or have chopped up parts. In addition, on that same day, a couple of hours prior, there was an incident involving a band of that sort riding around, and a nearby street, Atlantic Avenue, tends to be a commonly used escape route. PO Fernandez

discussed with Sgt. Birchwood his suspicion that the motorcycle might be stolen. PO Fernandez could not recall whether he expressed this belief to § 87(2)(b) and did not know whether Sgt. Birchwood did so. When asked to describe what this discussion entailed, PO Fernandez stated that when they lifted § 87(2)(b)'s motorcycle up and leaned it on its kickstand to keep it up, they looked at each other. They both realized the condition of the motorcycle and said, "Wanna run the bike to make sure it wasn't someone fleeing something," as they had no idea why § 87(2)(b) fell. PO Fernandez believed he might have been the one who asked Sgt. Birchwood if he wanted to run the motorcycle. PO Fernandez entered § 87(2)(b)'s motorcycle's V.I.N. on an NYPD issued phone and checked that it had not been reported stolen at any point. PO Fernandez did not recall whether he asked for § 87(2)(b)'s license, registration, and proof of insurance, but he believed PO Samuel and PO Flores got it for him. PO Fernandez stated it was also possible that when they ran the motorcycle's V.I.N., they got § 87(2)(b)'s name and ran that afterwards, but could not say for sure. PO Fernandez did not recall interacting with § 87(2)(b) while at the scene and did not recall if Sgt. Birchwood ever spoke with § 87(2)(b). PO Fernandez did not recall speaking to the other officers on the scene, and did not recall whether Sgt. Birchwood spoke to them either. PO Fernandez approximated that he and Sgt. Birchwood were at the scene of the incident for approximately five minutes; PO Samuel and PO Flores gave them a thumbs up as if they were good, so they left (Board Review 13).

PO Samuel testified that he noticed § 87(2)(b) drop his motorcycle, leave it in the street, and scream that somebody maced him. PO Samuel and PO Flores approached § 87(2)(b) and when PO Samuel asked him what happened, he replied, "He maced me." Shortly after, a car containing a sergeant, Sgt. Birchwood, and an officer, PO Fernandez, arrived on the scene. PO Samuel did not observe any other officers in the area. PO Samuel explained what happened to Sgt. Birchwood and PO Fernandez; he told them § 87(2)(b) said he got pepper sprayed. While PO Fernandez attended to § 87(2)(b), Sgt. Birchwood inspected § 87(2)(b)'s motorcycle in the street. PO Samuel approached Sgt. Birchwood, and asked him if he wanted him to do anything, or call an ambulance. Sgt. Birchwood told PO Samuel that he would take care of things, so PO Samuel left. PO Samuel believed he was present for approximately two to three minutes before walking off. While present, PO Samuel did not hear the officers ask for § 87(2)(b)'s license, registration, or proof of insurance. PO Samuel did not know whether a warrant check was run for § 87(2)(b). PO Samuel described the conversation between Sgt. Birchwood, PO Fernandez, and § 87(2)(b) as similar to his own conversation; they asked what he was talking about and if someone pepper sprayed him. § 87(2)(b) repeated that someone pepper sprayed him in reply (Board Review 14).

PO Flores testified that he and PO Samuel were standing at the intersection of Utica Avenue and Prospect Place when he noticed an unidentified male individual, § 87(2)(b) drop his motorcycle and helmet near the middle of the walkway and start screaming that he was pepper sprayed. § 87(2)(b) approached PO Flores and PO Samuel and shortly after, a housing sergeant, Sgt. Birchwood, appeared with approximately four or five other officers with him. PO Flores did not recall if another officer asked § 87(2)(b) for his license, registration, or proof of insurance. PO Flores estimated he stood five feet away from § 87(2)(b) and the housing sergeant, but he did not hear their discussion, but did not notice what the other officers were doing. PO Flores stood there for approximately one minute afterwards, went up to Sgt. Birchwood, and asked him if he needed them to do anything. Sgt. Birchwood said, he did not, so PO Flores and PO Samuel left and resumed patrol (Board Review 15).

Patrol Guide Procedure 212-11 states a police officer may seek information related to the reason(s) why a person was approached, such as the person's name, address and destination if those questions are related to the objective credible reason, which the police officer must have, for the approach. This type of encounter does not require any suspicion of criminal activity, and, at any level, an officer may ask an individual to either verbally identify herself/himself or present an identification to verify that person's identity (Board Review 19).

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date